

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 873

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO ELECTIONS; AMENDING SECTION 22-2721, IDAHO CODE, TO REVISE CERTAIN ELECTION DATES; AMENDING SECTION 34-308, IDAHO CODE, TO REVISE A PROVISION REGARDING THE MAILING OF CERTAIN BALLOTS; AMENDING SECTION 34-1410, IDAHO CODE, TO REVISE A PROVISION REGARDING CANVASSING OF ELECTION RESULTS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 22-2721, Idaho Code, be, and the same is hereby amended to read as follows:

22-2721. ELECTION, APPOINTMENT, QUALIFICATIONS AND TENURE OF SUPERVISORS. (1) The governing body of the district shall consist of five (5) supervisors, elected or appointed as provided in this chapter. Elections shall be conducted pursuant to the provisions of this section and the uniform district election law, chapter 14, title 34, Idaho Code. If at any time the supervisors of a district deem it necessary, upon majority vote of the district board, they may increase the number of supervisors to seven (7) or decrease the number of supervisors to five (5). If increased, the additional supervisors shall then be appointed as outlined in this section until such time as regular district elections for two (2) supervisors in each district. At that time, those districts having seven (7) supervisors shall then elect four (4) supervisors for four (4) year terms. The two (2) supervisors appointed by the district shall be persons who are by training and experience qualified to perform the specialized services that will be required of them in the performance of their duties. In the event the supervisors of a district, upon majority vote of the district board, deem it necessary to reduce the number of supervisors to five (5), there must either be two (2) vacant positions on the board or two (2) of the supervisors must first volunteer to give up their seats. Written notification of the reduction in supervisors, signed by the district board chairman, shall then be sent to the state soil and water conservation commission. Such notification shall also be sent to the secretary of state to ensure only two (2) or three (3) supervisors shall be on the ballot for the next election cycle. All supervisors shall be landowners or farmers of the district where they are elected or appointed and shall be registered to vote in the state of Idaho.

(2) Within thirty (30) days after the date of issuance by the secretary of state of a certificate of organization of a soil conservation district, nominating petitions may be filed with the state soil and water conservation commission to nominate candidates for supervisors of each district. The county clerk shall conduct the election for the district in compliance with chapter 14, title 34, Idaho Code, and shall be the election official for the district. The election official shall have authority to extend the time

1 within which nominating petitions may be filed. Nominating petitions shall
 2 be filed with the secretary of the district, and no such nominating petition
 3 shall be accepted by the election official unless it shall be subscribed
 4 by not less than five (5) persons who are qualified electors owning land
 5 or residing within the boundaries of the district. The election official
 6 shall give due notice of an election to be held, subject to the provisions
 7 of section 34-106, Idaho Code, for the election of three (3) supervisors for
 8 the district. The names of all nominees on behalf of whom such nominating
 9 petitions have been filed within the time herein designated shall appear
 10 upon ballots, with directions to choose three (3) names to indicate the
 11 voter's preference. The three (3) candidates who receive the largest num-
 12 ber, respectively, of the votes cast in such election shall be the elected
 13 supervisors for such district.

14 (3) All elections in districts shall be conducted by the county clerk.
 15 Such election shall be held on the first Tuesday succeeding the first Monday
 16 of November in each ~~even-numbered~~ odd-numbered year. Such elections shall
 17 be in compliance with the provisions of chapter 14, title 34, Idaho Code,
 18 and shall be supervised and conducted by the county clerk. The cost of con-
 19 ducting such elections shall be borne by the county that conducted the elec-
 20 tion. The county clerk shall certify to the soil and water conservation dis-
 21 trict the names of the elected supervisors. The soil and water conservation
 22 district shall issue certificates of election to each elected supervisor so
 23 certified. The county clerk or county clerks of the county or counties in
 24 which the district is located shall conduct the election for the soil conser-
 25 vation district, and the county clerk must provide a ballot for the district
 26 election and must provide a process that allows only qualified electors of
 27 the district to vote in that district's election.

28 (4) In any election for supervisor, if, after the deadline for filing
 29 a declaration of intent as a write-in candidate, it appears that the num-
 30 ber of qualified candidates who have been nominated is equal to the number
 31 of supervisors to be elected, it shall not be necessary for the candidates to
 32 stand for election. The board of supervisors shall declare such candidates
 33 elected as supervisors, and the soil and water conservation district shall
 34 immediately make and deliver to such persons certificates of election.

35 (5) The supervisors shall designate a chairman and may, from time to
 36 time, change such designation. The term of office of each supervisor shall
 37 be four (4) years commencing on the first day of January next following elec-
 38 tion, except that the two (2) supervisors who are first appointed shall be
 39 designated to serve for terms of two (2) years. Vacancies shall be filled for
 40 the unexpired term. The selection of successors to fill an unexpired term
 41 or for a full term shall be made by a vote of the majority of the supervi-
 42 sors duly qualified and acting at the time the vacancy shall arise, and the
 43 supervisors shall certify the name of the appointed supervisor to the state
 44 soil and water conservation commission. In the event supervisors fail to
 45 appoint a replacement within ninety (90) days following a vacancy, and the
 46 vacancy results in the loss of a quorum of the district board, the governor
 47 shall appoint a replacement sufficient to reestablish a quorum of the dis-
 48 trict board. The soil conservation district shall issue a certificate of
 49 such appointment.

(6) A quorum shall consist of three (3) supervisors for those districts with a total of five (5) supervisors and four (4) supervisors for those districts with a total of seven (7) supervisors, and the concurrence of a majority in any matter within their duties shall be required for its determination. A supervisor shall be entitled to expenses, including travel expense, necessarily incurred in the discharge of duties. A supervisor shall receive no compensation for services from regular district funds, county funds authorized in section 22-2726, Idaho Code, or state funds authorized in section 22-2727, Idaho Code.

(7) In the event the district has a special project, approved by the state soil and water conservation commission, making project funds available from federal or other sources, a supervisor may receive compensation not to exceed thirty-five dollars (\$35.00) per day plus actual and necessary expenses from project funds for services directly related to the project.

(8) The supervisors may employ a secretary, technical experts, and such other officers, agents, and employees, permanent and temporary, as they may require and shall determine their qualifications, duties and compensation. The supervisors may call upon the attorney general of the state for such legal services as they may require or may employ their own counsel and legal staff. The supervisors may delegate to their chairman, to one (1) or more supervisors, or to one (1) or more agents or employees such powers and duties as they may deem proper. The supervisors shall furnish to the state soil and water conservation commission, upon request, copies of such ordinances, rules, orders, contracts, forms and other documents as they shall adopt or employ and such other information concerning the supervisors' activities as the commission may require in the performance of the commission's duties under this chapter.

(9) The supervisors shall provide for the execution of surety bonds for all employees and officers entrusted with funds or property; shall provide for the keeping of a full and accurate record of all proceedings and of all resolutions and orders issued or adopted; and shall provide for independent financial audits in accordance with the provisions of section 67-450B, Idaho Code. Supervisors shall be subject to recall in accordance with the provisions of chapter 17, title 34, Idaho Code.

(10) The supervisors may invite the legislative body of a municipality or county located near the territory comprised within the district to designate a representative to advise and consult with the supervisors of the district on all questions of program and policy that may affect the property, water supply, or other interests of such municipality or county.

(11) Notwithstanding any other provision of law to the contrary, the election for supervisor scheduled for November 2026 shall instead be held on the Tuesday following the first Monday in November 2027 and shall be for a term of four (4) years; and the election for supervisor scheduled for November 2028 shall instead be held on the Tuesday following the first Monday in November 2029 and shall be for a term of four (4) years.

SECTION 2. That Section 34-308, Idaho Code, be, and the same is hereby amended to read as follows:

34-308. MAIL BALLOT PRECINCT. (1) A precinct within the county that contains no more than one hundred forty (140) registered electors at the

1 last general election may be designated by the board of county commissioners
 2 as a mail ballot precinct no later than April 1 in an even-numbered year.
 3 Such a designation shall apply thereafter to all elections conducted within
 4 the precinct until revoked by the board of county commissioners or until
 5 the precinct contains one hundred fifty-one (151) registered electors at
 6 the last general election. Having designated a mail ballot precinct, there
 7 shall be no voting place established within the precinct. Elections in a
 8 mail ballot precinct shall be conducted in a manner consistent with absentee
 9 voting with the special provisions provided in this section.

10 (2) The clerk shall issue a ballot, by mail, to every registered voter
 11 in a mail ballot precinct and shall affix postage to the return envelope suf-
 12 ficient to return the ballot.

13 (3) The ballot shall be mailed no sooner than ~~twenty-four (24)~~ forty-
 14 five (45) days prior to the election day and no later than the ~~fourteenth~~
 15 eleventh day prior to the election.

16 (4) The clerk shall make necessary provisions to segregate mail bal-
 17 lot precinct ballots by precinct and, for all purposes of the election, the
 18 precinct integrity shall be maintained.

19 (5) The clerk shall make registration available in the office of the
 20 clerk on election day for any individual who is eligible to vote and who re-
 21 sides in a mail ballot precinct and has not previously registered. The clerk
 22 shall provide an official polling place in the office of the clerk, and a
 23 qualified elector who registers on election day and resides in a mail ballot
 24 precinct shall be allowed to vote at the office of the clerk.

25 (6) (a) Except as provided in paragraph (b) of this subsection, electors
 26 who have designated a political party affiliation pursuant to section
 27 34-404, Idaho Code, shall receive the primary election ballot for that
 28 party pursuant to sections 34-904 and 34-904A, Idaho Code.

29 (b) Electors who have designated a political party affiliation pur-
 30 suant to section 34-404, Idaho Code, may receive the primary election
 31 ballot of a political party other than the political party such elector
 32 is affiliated with if such other political party has provided notifica-
 33 tion to the secretary of state that identifies the political party such
 34 elector is affiliated with, as provided for in section 34-904A(2) (b),
 35 Idaho Code.

36 (7) For "unaffiliated" electors, in order to receive a political
 37 party's primary election ballot pursuant to section 34-904A, Idaho Code, the
 38 county clerk shall mail a ballot request form for the primary election ballot
 39 to the electors in a mail ballot precinct for the electors to use in selecting
 40 the party ballot they choose to receive.

41 (a) In the event that more than one (1) political party allows electors
 42 designated as "unaffiliated" to vote in their party's primary election
 43 pursuant to section 34-904A, Idaho Code, an elector designated as "un-
 44 affiliated" shall indicate on the form such elector's choice of the po-
 45 litical party's primary election ballot in order to vote in that party's
 46 primary election.

47 (b) In the event no more than one (1) political party allows electors
 48 designated as "unaffiliated" to vote in their party's primary election
 49 pursuant to section 34-904A, Idaho Code, an elector designated as "un-
 50 affiliated" shall indicate on the form that political party's primary

1 election ballot in order to vote in that political party's primary elec-
2 tion.

3 (c) If an elector designated as "unaffiliated" is not permitted to
4 vote in a political party's primary election as provided for in section
5 34-904A, Idaho Code, such elector shall receive a nonpartisan ballot.

6 (d) If an elector designated as "unaffiliated" does not indicate on the
7 form a choice of political party's primary election ballot, such elec-
8 tor shall receive a nonpartisan ballot.

9 SECTION 3. That Section 34-1410, Idaho Code, be, and the same is hereby
10 amended to read as follows:

11 34-1410. CANVASSING OF ELECTION RESULTS. The board of county commis-
12 sioners shall conduct the canvass of the election results within ~~ten (10)~~
13 nine (9) days after the election, in the manner provided in chapter 12, ti-
14 tle 34, Idaho Code. The county clerk shall certify the election results to
15 the clerk of each political subdivision for which an election was held. Each
16 political subdivision shall issue the appropriate certificates of election.

17 SECTION 4. An emergency existing therefor, which emergency is hereby
18 declared to exist, this act shall be in full force and effect on and after
19 July 1, 2026.